

2. M-CV-0093623 Sunbelt Rentals Inc. v. Timothy P Hansen

Defendants' motion to set aside default

Defendants, Timothy P. Hansen, individually and as trustee of the Timothy P. Hansen and Cheryl L. Hansen revocable trust dated 08/10/2021 and Cheryl L. Hansen, individually and as trustee of the Timothy P. Hansen and Cheryl L. Hansen revocable trust dated 08/10/2021, filed a motion to set aside within 60 days of the default entered on November 19, 2025, pursuant to Code of Civil Procedure sections Code of Civil Procedure § 473 (b).

Defendants base this motion on the grounds of excusable neglect and ignorance of the legal process. Plaintiff and defendant Diego Ibarra have not filed a response.

Pursuant to Code of Civil Procedure section 473 (b), “[t]he court may, upon any terms as may be just, relieve a party ... from a judgment, dismissal, order, or other proceeding taken against the party through the party’s mistake, inadvertence, surprise, or excusable neglect.” (Code Civ. Proc., § 473 (b).) A motion to set aside must be made “within a reasonable time, in no case exceeding six months” after the judgment, dismissal, order, or proceeding was taken. (*Ibid.*) A party seeking Section 473(b) relief must demonstrate diligence in seeking to set aside the default once ... discovered.” (*Stiles v. Wallis* (1983) 147 Cal.App.3d 1143, 1147-48, 195 Cal.Rptr. 377. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 981-82; Code Civ. Proc., § 473 (b).)

In this case, defendants brought the motion within two months following the entry of default. The court will accept defendants’ avowal of excusable neglect and ignorance of the legal process as sufficient to justify relief from default. The motion is therefore granted pursuant to section 473(b). The default entered on November 19, 2025, is hereby set aside. Defendants Timothy P. Hansen, individually and as trustee of the Timothy P. Hansen and Cheryl L. Hansen revocable trust dated 08/10/2021 and Cheryl L. Hansen, individually and as trustee of the Timothy P. Hansen and Cheryl L. Hansen revocable trust dated 08/10/2021, shall file and serve their answer to plaintiff’s complaint by **August 21, 2026**.

3. M-CV-0096902 West Coast Self-Storage Group v. Macrae, Weston

The motion to quash service of summons and the motion for preliminary injunction are both dropped from the calendar as no moving papers were filed with the court.

4. S-CV-0047819 Realí, Andrew v. Robles, Vincente

The motion for summary judgment is dropped from calendar as no moving papers were filed with the court.